

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER 1164048		PAGE OF 1 4	
2. CONTRACT NO.		3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER		5. SOLICITATION NUMBER 127EAS26R0003		6. SOLICITATION ISSUE DATE 04/24/2026
7. FOR SOLICITATION INFORMATION CALL: 		a. NAME KLENISE WALLACE			b. TELEPHONE NUMBER (No collect calls) 970-217-6804		8. OFFER DUE DATE/LOCAL TIME 05/08/2026 2359 PT
9. ISSUED BY USDA-FS CSA SOUTHWEST 2 333 BROADWAY BLVD SE ALBUQUERQUE NM 87102-3498				CODE 7EAS	10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) 562991 ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A) SIZE STANDARD: \$9		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ☐ ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING 14. METHOD OF SOLICITATION ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☒ REQUEST FOR PROPOSAL (RFP)	
15. DELIVER TO USDA FOREST SERVICE PACIFIC SOUTHWEST REGION 1323 CLUB DR VALLEJO CA 94592-1110				CODE 91S8	16. ADMINISTERED BY USDA-FS CSA SOUTHWEST 2 333 BROADWAY BLVD SE ALBUQUERQUE NM 87102-3498		
17a. CONTRACTOR/ OFFEROR		CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY			CODE
Company Name: Address: UEI No.: Contractor POC Name: POC Email: POC Number: COMPANY TELEPHONE NO.:				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NO.		20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
		This solicitation, 127EAS26R0003, is conducted as full and open competition (unrestricted) consistent with FAR 6.101 (policy) and FAR Part 12 commercial procedures. The Government intends multiple awards of IDIQ contracts under FAR 16.504(c). (No socioeconomic set aside is applied at the parent contract level.) Reference Sol No.: 127EAS26R0003 MAS No.: TBD (Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Government Use Only)	
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA						☒ ARE ☐ ARE NOT ATTACHED.	
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED.	
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.				☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED	
				KLENISE S. WALLACE			

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Title: United States Forest Service (USFS) California Regional Vault and Septic Pumping Services Multi-Award Indefinite Delivery / Indefinite Quantity (IDIQ) Description: The United States Forest Service (USFS) California State National Forests have a requirement for vault Toilet Pumping, Septic Tank Pumping, Portable Toilet Pumping, Inspecting and Cleaning USFS owned Vault Toilet Buildings and USFS owned Portable Toilet structures. From the anticipated solicitation and subsequent award, the Government will award a multiple award IDIQ. Primary Geographic Locations Serviced: This solicitation and resulting contract(s) cover all four (4) California Geographic Locations indicated by Attachment J.4 comprised of the following forests, which include 17 National Forests and 1 Basin with some small acreage along the California/Nevada Border and the California/Oregon border. Some of the work may encompass private land adjacent to these National Forest lands. Interested offerors may submit a proposal for one (1) or any combination of the four (4) geographic location(s). Northern California Forests: Klamath, Lassen, Mendocino, Modoc, Shasta-Trinity, and Six Rivers Continued ...				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY (<i>Print</i>)		
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		42b. RECEIVED AT (<i>Location</i>)		
		42c. DATE REC'D (YY/MM/DD)		42d. TOTAL CONTAINERS

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
0001	National Forests Central Sierra California Forests: Eldorado, Lake Tahoe Basin, Plumas and Tahoe National Forests Southern Sierra California Forests: Inyo, Sequoia, Sierra and Stanislaus National Forests Southern California Forests: Angeles, Cleveland, Los Padres, and San Bernardino National Forests Additional authorized project locations include USFS Regions 3 (AZ/NM), 6 (OR/WA) and 10 (AK). See continuation of term for details on other Forest Service Locations authorized for service under this IDIQ. Period of Performance: One base year plus four (4) option years; the total duration shall not exceed five (5) years and six (6) months when including any extension of services. Contract Type & Ceiling: Multiple-award IDIQ, Firm-Fixed Price task orders. The combined ordering ceiling across all awards shall not exceed \$9,000,000. Forest Service Contacts: COR: Victor Aguirre orozco, victor.aguirreorozco@usda.gov GTM: Sarah Belcher, sarah.belcher@usda.gov CO: Klenise Wallace, klenise.wallace@usda.gov Potential PoP with Option Years... Period of Performance: 05/22/2026 to 04/30/2031 Base Period USFS CA Vault Toilet Pumping & Waste Disposal IDIQ Product/Service Code: S222 Product/Service Description: HOUSEKEEPING- WASTE TREATMENT/STORAGE Delivery: 04/30/2027 Period of Performance: 05/22/2026 to 04/30/2027 Continued ...				

CONTINUATION SHEET

REFERENCE NO. OF DOCUMENT BEING CONTINUED
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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
1001	Option Year One (1) USFS CA Vault Toilet Pumping & Waste Disposal IDIQ (Option Line Item) Product/Service Code: S222 Product/Service Description: HOUSEKEEPING- WASTE TREATMENT/STORAGE Delivery: 04/30/2028 Period of Performance: 05/01/2027 to 04/30/2028				
1002	Option Year Two (2) USFS CA Vault Toilet Pumping & Waste Disposal IDIQ (Option Line Item) Product/Service Code: S222 Product/Service Description: HOUSEKEEPING- WASTE TREATMENT/STORAGE Delivery: 04/30/2029 Period of Performance: 05/01/2028 to 04/30/2029				
1003	Option Year Three (3) USFS CA Vault Toilet Pumping & Waste Disposal IDIQ (Option Line Item) Product/Service Code: S222 Product/Service Description: HOUSEKEEPING- WASTE TREATMENT/STORAGE Delivery: 04/30/2030 Period of Performance: 05/01/2029 to 04/30/2030				
1004	Option Year Four (4) USFS CA Vault Toilet Pumping & Waste Disposal IDIQ (Option Line Item) Product/Service Code: S222 Product/Service Description: HOUSEKEEPING- WASTE TREATMENT/STORAGE Delivery: 04/30/2031 Period of Performance: 05/01/2030 to 04/30/2031 Funding will be provided on individual task orders.				

Event	Date*
Questions Due	05/05/2026
Proposals Due	05/08/2026
Evaluation Week	05/11 to 05/15/2026
Anticipated Award Date	05/22/2026

Note: For the purposes of this Request for Proposal issuance, Proposals are due no later than **2359 PST on 08 May 2026. The remaining dates are tentative and subject to change.*

SECTION B – SCHEDULE OF ITEMS

B.1 General

Due to the nature of this work, each Task Order might require a unique skill mix to accomplish the work. Therefore, Contractors should anticipate that each task order schedule will be unique to the project and may not use all the rates supplied in the parent contract on the orders.

B.1.1. The Contractor shall provide all labor, equipment, transportation, supplies, permits, and incidentals required for:

- Vault toilet pumping
- Septic tank pumping
- Portable toilet servicing
- Vault cleaning and inspection
- Waste hauling and legal disposal
- Emergency and remote/winter site access

B.1.2. Pricing will be submitted via: Attachment J3 — Schedule of Items (SOI)

B.1.3. Offerors must complete all tabs (Base + Option Years 1–4) and all zones.

B.2 CLIN Structure (summarized)

- Task 1 – Vault Pumping (Small/Medium/Large/Extra Large)
- Task 2 – Septic Pumping (Small/Medium/Large/Extra Large)
- Task 3 – Portable Toilet Servicing
- Task 4 – Basic Inspections and Reporting
- Travel (tiered by round trip minutes per zone)

B.2.1 This is an IDIQ; quantities are unknown until task orders are issued.

B.3 Competition Marker (Unrestricted, Multiple Award)

This solicitation is conducted as full and open (unrestricted) under Federal Acquisition Regulation (FAR) Part 12 using FAR Subpart 13.5 for the parent awards.

B.4 IDIQ Ceiling

The Government intends to make multiple IDIQ awards under FAR 16.504(c) with a combined ordering ceiling of \$9,000,000 across all awards.

END OF SECTION B

SECTION C – DESCRIPTION/STATEMENT OF WORK

C.1 Introduction

This contract supports the United States Forest Service (USFS) California National Forests for vault and portable toilets and septic tank pumping. The full Performance Work Statement (PWS) is included as **Attachment J2**.

It describes:

- Pumping procedures
- Debris removal and cleaning
- Waste transport and disposal
- Reporting within 5 business days
- Spill response and safety
- Emergency service requirements
- Remote/winter accessibility
- Site protection rules

All requirements of Attachment J2 and the terms herein are mandatory.

C.2 General Contract Requirements

C.2.1. Compliance with Regulations

The Contractor shall comply with all applicable Federal, State, interstate, and local laws, environmental regulations, and requirements. The duty of the Contractor to comply with all current applicable laws, regulations, and requirements takes precedence over any other duty or task described herein. Therefore, if subsequent legislation or regulations conflict with prescribed procedures contained in this contract, said changes shall take precedence. Where changes to law, regulation, or requirement necessitate a change to the contract, the parties agree to negotiate an equitable adjustment for it upon written notice from the Contractor. Unless said notice is received within 30 days of the effective date of the amendment to the statute or regulation, said regulation shall be deemed to be a no-cost change.

Therefore, it is the responsibility of the Contractor to contact the appropriate regulatory agency(s) to determine their requirements for each individual project. It is the Contractor's responsibility to find out from the regulatory agency(s) which guidance materials are current and applicable.

The Contractor shall, without additional expense to the Forest Service, be responsible for obtaining any necessary licenses and permits, and for complying with any applicable, Federal, State, and local laws, codes, and regulations in connection with the execution of the work. This includes ensuring project related hazardous or toxic wastes are sent to licensed, permitted, and approved disposal sites.

C.2.2 Health and Safety Requirements

The Contractor shall perform all operations in a prudent, conscientious, safe, and professional manner. At a minimum, the Contractor's personnel and equipment shall comply with applicable Federal, State, and local laws, safety and health regulations and procedures, as well as Forest Service regulations, rules, and procedures. The Contractor shall ensure that its agents, employees, and subcontractors perform in a safe manner and all personnel involved in handling hazardous materials/waste and conducting activities under this contract are trained in the level of expertise required for the proper performance of the work activities.

Personnel protective equipment (PPE) shall be provided by the Contractor and must be appropriate to ensure safe handling of the hazardous waste (at a minimum, in accordance with 29 CFR 1910.120 et seq.) The Contractor shall also provide notification to the Forest Service of all hazardous materials, which may be brought onto the National Forest as part of accomplishing the tasks under this contract. Contractor personnel and equipment are subject to safety inspections by Government personnel while on Federal property. Nothing in this section shall be construed to reduce or modify the duties and responsibilities of the Contractor toward its employees.

The Contractor shall take such additional immediate precautions as the Contracting Officer (CO) or Contracting Officer Representative (COR) may reasonably require for safety and mishap prevention purposes.

Prior to initiating field operations, all Contractor personnel shall have read and understood all Health and Safety requirements established by the Contractor. The Contractor shall ensure that all personnel involved with removal operations are medically qualified, properly trained, and fitted to wear PPE.

C.2.3 Project Timelines

Elapsed time between approval of a work plan or report by the Government and completion of an activity and/or issuance of a final report by the Contractor will be identified in each individual task order.

All task order performance times are on a project specific basis by mutual agreement between the Government and the Contractor depending on the urgency of the situation, weather conditions, or other variables impacting the task order. If an offeror cannot meet this schedule, this should be so stated in the offer, along with the reason why, and the contractor may provide a time frames they can reasonably accomplish the task order. It is the Contractor's responsibility to request for a project time frame extension in writing to the USDA Forest Service whenever it is determined that the established project timeline will not be met.

C.2.4 Hazardous Material and Waste Management

C.2.4.1. Material/Waste Management on National Forest Lands:

The Contractor is responsible for seeing that all materials and wastes generated during the activities of this contract are managed in compliance with Federal, State, and local environmental laws and regulations.

C.2.4.2 Off-Site Treatment/Storage/Disposal Facilities:

The Contractor shall identify each recycling and/or Treatment/Storage/Disposal (TSD) facility, which may receive hazardous materials/wastes under this contract.

C.3 Compliance with Laws and Permits

The Contractor shall comply with all applicable Federal, State, county, tribal, and local laws, regulations, ordinances, and permit requirements relating to the performance of vault and septic pumping services. This includes, but is not limited to:

Wastewater pumping, transport, and disposal regulations, including all requirements governing the handling, transportation, and disposal of septage, graywater, sewage, and other liquid or solid waste materials.

State and local wastewater hauling permits, business licenses, environmental health permits, transporter

registrations, and any other authorizations required by the jurisdiction(s) where services are performed or waste is disposed.

EPA, DOT, and FMCSA regulations applicable to waste transport vehicles, hazardous materials handling (when applicable), spill prevention, and safe operation on public roads.

OSHA worker safety requirements, including confined space, PPE, sanitation, hazard communication, and any other relevant occupational safety standards.

National Forest System regulations, including access, environmental protection, and operating restrictions prescribed by the Forest Service.

All required permits must be valid at the time of award and maintained throughout the period of performance. The Government may request proof of current permits at any time.

Failure to maintain required permits or regulatory compliance may result in suspension of work, rejection of services, withholding of payment, or termination in accordance with the terms of this contract.

END OF SECTION C

SECTION D – PACKAGING AND MARKING

Not applicable to service contracts.

END OF SECTION D

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SECTION E - INSEPTION AND ACCEPTANCE

E.1. General

Each task order will state specific inspection and acceptance methods, which may include on-site observation, service documentation, manifests, and Quality Assurance Surveillance Plan (QASP) surveillance. The Government may reject non-conforming services; contractors shall proceed diligently pending dispute resolution per FAR 52.212-4.

E.1.1 Inspection and acceptance criteria will be stated in each task order placed under this contract.

E.1.2 Inspection and acceptance will be performed by the COR, via:

- On site inspection
- Service documentation (Documentation that corroborates performance such as (contractor-provided operational records, logs, and supporting materials)
- Waste manifests
- Service Report documenting the date, time, site, services performed, quantities pumped, disposal location, and any issues requiring COR attention.
- QASP surveillance

E.1.3 The Government may reject services not meeting the PWS and/or individual task order requirements.

E.1.4 Government inspections serve only to verify and confirm compliance; they do not replace the Contractor's responsibility to monitor, control, detect, and correct performance issues through its own quality control processes. The Contractor must identify and correct deficiencies independently and shall not rely on Government inspections as its primary means of discovering or addressing deficiencies.

E.1.5 The USFS COR, a designated GTM, and/or the CO may observe the Contractor's inspection at any time and shall otherwise have unlimited access to the inspection data.

E.2. Performance-Based Acquisition

This acquisition is structured as a performance-based service contract in accordance with FAR Subpart 37.6. The Performance Work Statement (PWS) describes the required outcomes and performance objectives to be achieved. The Contractor is responsible for managing and performing the work to meet these performance standards. The Government will conduct surveillance in accordance with its internal Quality Assurance Surveillance Plan (QASP) to verify that the Contractor's performance meets the required outcomes. The QASP is not part of the contract.

END OF SECTION E

SECTION F – DELIVERIES OR PERFORMANCE

F.1 Period of Performance (Parent IDIQ)

The parent contracts will include one (1) base year and four (4) option years. Options may be exercised at the unilateral discretion of the Government in accordance with FAR 17.207.

The Government may, as an administrative practice, request written contractor acknowledgement through the SF-30 when exercising an option; however, such acknowledgement does not limit or alter the Government's unilateral right to exercise an option, nor does it constitute direction to perform work prior to the execution of the modification by a warranted Contracting Officer.

F.2 Task Order Performance Periods

Each Task Order awarded under this IDIQ will have negotiated periods of performance appropriate to the Activity(ies) required. Task order performance periods will be established at the time of order.

452.211-74 Period of Performance (FEB 1988)

The total period of performance of this contract is five (5) years from contract award.

END OF SECTION F

SECTION G – CONTRACT ADMINISTRATION DATA

G.1 Forest Service Representatives

The Contracting Officer Representative (COR) for this solicitation and subsequent contract is Victor Aguirre-Orozco.

The Contracting Officer (CO), along with other Contracting Professional roles responsible for contract administration will be established post award.

Each Task Order awarded under this contract will be assigned a Contracting Officer (CO) and Contracting Officer Representative (COR) for that specific project. A Contract Specialist (CS), Purchasing Agent (Agent) or Government Technical Monitor (GTM) may be assigned as available.

This IDIQ is for the primary use of warranted USFS Contracting Officers supporting work in California State. Outside agencies and neighboring Forest Service offices may use this multiple award IDIQ in accordance with Section H.

G.2 Contractor Representatives

The Contractor shall identify a Person(s) of Contact for administrative tasks such as invoicing and contract modifications. Additional personnel may be identified as Person(s) of Contact for Task Order response requests.

G.3 Subcontracting Plan Reporting (Large Businesses)

For any award to an “other than small” business in an amount greater than or equal to the FAR 19.702 threshold (\$900,000 as of October 1, 2025), and for which subcontracting possibilities exist, the Contractor shall submit and maintain an acceptable Small Business Subcontracting Plan in accordance with FAR 52.219-9.

Reports shall be submitted in accordance with clause 52.219-9(l) using the Government’s designated reporting system (currently SAM.gov Subcontracting Plan Reporting).

G.4 Invoices

The following supplements the invoice terms contained within FAR 52.212-4(g) contained herein.

Payments will be made from the Contractor’s invoice(s). All invoices are to be submitted via the electronic Invoice Processing Platform (IPP) System. The "Submit Invoice-to" address for USDA orders is the Department of Treasury's Invoice Processing Platform (IPP). The contractor must follow the instructions on how to register and submit invoices via IPP as prescribed in previous communications from USDA and Treasury.

This is a mandatory requirement initiated by the U.S. Department of Treasury and you can find more information at this website <https://www.ipp.gov/index.htm>. Ensure your company has registered at <https://www.ipp.gov/vendors/enrollment-vendors.htm> to establish your account. Solicitation offerors must have an established account prior to parent contract proposal submission.

Invoice Processing Platform (IPP) does not allow for the contractor to change the description of the line items being invoiced against and therefore an itemized invoice must be uploaded as an attachment(s). If the itemized invoice has not been reviewed and approved by the COR, the IPP payment request will be rejected. Please follow the minimum requirements to ensure a successful payment process.

IPP Invoice shall have the following areas completed at a minimum: Invoice Number Invoice Date Bill Period Start Date Bill Period End Date Supplier Contact Name Supplier Contact Phone Contract Number	Itemized invoice shall include at a minimum: Contractor Name & Address Contract number Invoice Number Description of Services or work completed. Date of services or completion.
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PRIOR to start the IPP enrollment process, please verify that the point of contract's (POC's) email address is up to date in your company's System for Award Management (SAM) account at www.sam.gov and that any recent update(s) have been allowed time to process resulting in an "Active" status on the SAM account. The one-time enrollment in IPP means a series of emails will be sent to the SAM POC. If you have questions on the IPP enrollment process, the help desk phone number is 1-866-973-3131.

G.5 Contract Release

Before final payment may be made the Contractor shall sign a release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically accepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned under the Assignment of Claims Act of 1940 (31 U.S.C. 3727 and 41 U.S.C. 15).

G.6 Notice to Proceed

Work may begin on this contract upon the contractor's receipt of the fully executed award issued by the Contracting Officer, CS or Agent with the contractor coordinated agreement of the COR (or GTM if no COR is assigned). Suspensions and resumption or work notices must be received in writing from the Government. Any adjustments to the anticipated completion date must be accomplished via formal written modification of the contract.

G.7 On/Off Ramp Of Contractors

G.7.1 On Ramp

The Government will review IDIQ performance and requirements on a regular basis (at least yearly) and determine the necessity of on ramping. The Government reserves the right to announce and issue a new solicitation for the purposes of: (i) adding additional Contractors to expeditiously meet the requirement as the need for increased assessments materialize; and (ii) increase the small business pool of Contractors; and (iii) increase competition. The Government may implement on-ramp procedures at any time by reopening the competition and utilizing the same basis of award established in the initial solicitation. Quotes submitted in response to the solicitation amendment for on-ramping must be rated equal to or higher than the lowest rated contractor originally awarded IDIQ in order to be considered for an award. Quotes submitted in response to a previous solicitation shall not be evaluated unless company has received certification/license/authority since previous submission. Any resulting IDIQ awarded will include the same terms and conditions as the current agreement holders. Implementing this procedure will not affect the overall period of performance for the basic agreement.

G.7.2 Off Ramp

The Government reserves the right to implement off-ramp procedures, which would result in the removal of IDIQ holders. The criteria for off-ramping may include, but not limited to, IDIQ holders not proposing on order request(s), not having at least one order awarded beyond guaranteed quantity, and/or unsatisfactorily meeting the SOW/PWS requirements. If implemented, off-ramp procedures will remove IDIQ holders by cancelling the IDIQ.

G.8 Contractor Performance Assessment Reporting System (CPARS)

Contractor Performance Information and Contractor Performance Assessment Reporting System (CPARS) will be used by the Forest Service for evaluating contractor performance for this IDIQ. CPARS is the single USDA-wide system used to collect, maintain, and disseminate contractor performance evaluations to the Past Performance Information Retrieval System (PPIRS). Past performance reporting is required by FAR 42.1502 and 42.1503. The contractor will be notified by email to review evaluation information submitted by the Agency. The contractor will have 60 days to submit comments, rebutting statements, or additional information to the Assessing Official before any evaluation is considered final.

G.8.1 Task Order Evaluations

Each task order will require a closeout evaluation.

CPARS evaluations will not be required for task orders unless:

- a) The CO determines that task-order evaluations will yield more useful information than the contract-level evaluation.
- b) Tasks exceed the Simplified Acquisition Threshold.

G.9 Definitions

Administrative Contracting Officer (ACO) - The ACO is a warranted Contracting Officer that has authority for the administration of the contract and may handle matters beyond the authority of the COR in the absence of the Contracting Officer (CO)). Generally, this includes the day-to-day administration of the contract, to include changes in contract price and time.

Changes (Modifications) The Contracting Officer is the only person authorized to approve changes in any of the requirements under this contract and notwithstanding any provisions contained elsewhere in this contract the said authority remains solely with the Contracting Officer. In the event the Contractor effects any such change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in costs incurred as a result thereof.

Contract Award A written award or acceptance of offer mailed or otherwise furnished to the Contractor shall result in a binding contract without further action by either party.

Contracting Officer Representative (COR) The COR has delegated authority that includes but may not be limited to providing technical advice and guidance pertaining to the project work, maintaining property records, outlining work, providing material approvals, inspecting work in progress, estimating completed work for partial or progress payments, and/or conducting pre-final and final inspections. In addition, the

COR oversees administrative matters (e.g., submittals, etc.) and ensures elements of contract requirements are met in accordance with the contract terms and conditions. The COR is NOT authorized to direct changes or bind the Government to any contractual agreement. The COR delegated authority and responsibilities will be defined on a delegation letter issued in conjunction with contract award.

Contracting Officer (CO) A Contracting Officer holds a legal warrant, which is a designation of authority to bind the Government. The CO has full authority for the administration of the contract and will personally handle all matters beyond the authority of the CS/Agent (if one is assigned) and/or the COR/GTM. COs are agents of the Government and are the only officials authorized to enter into any contract or agreement that binds the Government. If the Contractor is asked to perform work outside of the scope of the awarded contract, additional work, or make changes not specified in the existing contract award, DO NOT perform the work. Immediately notify the Contracting Officer.

Contracts Specialist (CS) or Purchasing Agent (Agent) The CS or Agent has delegated authority from the Contracting Officer to perform administration oversight of the contract and will handle all matters beyond the authority of the COR. Generally, this includes the day-to-day administration of the contract, except for matters pertaining to changes in contract price and/or time. Any contractual documents that bind the Government must have Contracting Officer approval and signature. The CS or Agent may be assigned post award.

Designation of Authorized Representative of the Contractor The Contractor shall assign a member or employee who will act as Project Manager during the course of this contract or during the course of this project. The official shall be responsible for affording liaison between the contract forces and the contracting offices. This designation shall be in writing and a copy furnished to the Contracting Officer.

Designation of Contracting Officer's Representative (COR) Designation will be made upon contract issuance and a copy of the designation letters will be furnished to the Contractor. Limits of authority are described in each designation letter.

Government Technical Monitor (GTM) A GTM is a Government Employee with less authority than a designated COR that supports contract work by answering basic contract questions, act as a technical advisor in their area of expertise, and/or inspect/monitor contract performance. The person fulfilling this role may shadow or advise the COR on Contracts for Services or Construction, but the GTMs primary responsibility is to provide technical support to the CO. A GTM may act as the primary technical point of contact on Supply orders. The GTM delegated authority, responsibilities and contact information will be defined on a delegation letter signed by the CO issued in conjunction with (or after) contract award. A GTM has no contractual authority. When there is no COR, the GTMs purpose is to provide inspection and recommendation to the CO for acceptance. The person delegated may also review and provide first-line approval of invoices.

Inspector(s) An Inspector is a Government Employee that may be assigned to the contract by the CO or COR in writing authorized to inspect the progress and certify completion of work on behalf of the COR. The inspector is the most likely person to coordinate with on matters involving conduct of work within the scope of the contract. If a disagreement or dispute arises, the contracting officer must be notified

immediately for resolution of such issues. The Contractor will receive a copy of the inspection designation (form R6-6320-32, or equivalent).

Notice to Proceed (NTP) The Contractor shall commence work upon receipt of a properly executed Notice to Proceed.

Unauthorized Instructions from Government or Other Personnel The Contractor shall not accept instructions issued by any person employed by the U.S. Government or otherwise other than the Contracting Officer, or the authorized representative of the Contracting Officer acting within the limits of his/her authority.

END OF SECTION G

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SECTION H - SPECIAL REQUIREMENTS

H.1 Ordering Procedures

H.1.1 Fair Opportunity to be Considered

All task orders will follow FAR 16.505. Unless an exception applies (FAR 16.505(b)), the Contracting Officer will provide each awardee a fair opportunity to be considered for orders above the micro-purchase threshold (as defined in FAR 2.101) and will state the order's basis of selection.

When services are required, a Statement of Work (scope of project and all attachments) will be sent to all Contractors in the Geographic area identified with specific instructions for the submission of responses and due date.

Contractors will generally be given 14 days to prepare and submit responses; however, more or less time may be allotted based on the requirements of the individual Task Order. Contractors unable to perform a requirement, must submit a "No Response" to the Task Order request for services with an explanation as to why no bid is being provided.

H.1.1.1. Small Business Order-Level Set-Asides

The CO may set aside individual orders for small business concerns (including 8(a), HUBZone, SDVOSB, WOSB/EDWOSB) under FAR Subpart 19.5.

The solicitation and contracts shall state whether order set-asides will be discretionary or mandatory, and the CO will first consider socio-economic programs for orders above the SAT before using a general SB set-aside.

When a small-business reserve is used and only one award exists in a specific category, orders may be issued directly to that concern in accordance with FAR 52.219-32.

H.1.1.2. Availability of Orders to Large Businesses

Orders not set aside for small business will be competed among all IDIQ awardees consistent with FAR 16.505.

The Government cannot set aside orders for large businesses only; however, the CO may use a fair-opportunity exception (e.g., urgency, only-one-capable source, logical follow-on) under FAR 16.505(b)(2) when justified.

H.1.2 Task Order (TO) Period of Performance Limits (PoP)

- a) Annual Limit: Each task order's PoP shall not exceed 365 calendar days from its start date.
- b) Fiscal-Year Limit: A TO Period of Performance shall not extend beyond the end of the fiscal year in which the task order is issued and fully funded.
- c) Issuance Rule: Orders must be issued within the parent IDIQ ordering period (FAR 52.216-18).
- d) Completion Rule: In accordance with FAR 52.216-22(d), task orders shall be completed within the PoP specified in the TO, even if that extends past the IDIQ ordering window.
- e) Operating Season Clarity: Each task order will clearly state start/end dates to ensure full performance occurs within the defined 365-day/fiscal-year window.

- f) The Government may define Operating Periods (OPs) for planning purposes; however, no TO PoP may exceed the limits above.

H.1.3 Task Order Notice to Proceed (NTP)

- a) A Notice to Proceed may be issued verbally (only when necessary) or in writing upon award of the Task Order.
- b) Task Order CO has flexibility on NTP written issuance, which may include email, in conjunction with task order award on the fully executed SF 1449 or via signed NTP form.
- c) The Contractor shall not begin performance until receipt of the NTP.
- d) The NTP will identify the authorized start date, which must fall within the Task Order Period of Performance and comply with the TO PoP limits described in Section H.1.2.
- e) The Government will not issue an NTP unless sufficient current-year funds are obligated and the associated PoP complies with the 365-day and single-fiscal-year limitations.
- f) If the Government issues a *verbal* NTP due to field or emergency conditions, a written confirmation will follow as soon as practicable.

H.1.4 Authorized Ordering Activities (Use of the IDIQ)

- a) Primary Use. Warranted USFS Contracting Officers supporting work in California (Pacific Southwest Region) may place orders under this IDIQ.
- b) Additional USFS Regions. With the IDIQ Contracting Officer's approval, USFS Region 10 (Alaska), Region 6 (Washington/Oregon), and Region 3 (Arizona and New Mexico) may place orders.
- c) Other Federal Agencies. Other Federal agencies (e.g., BLM/DOI) may use this IDIQ only via interagency acquisition and a written interagency agreement that sets roles and responsibilities before order placement, consistent with FAR 17.502-1 (assisted or direct acquisition, as applicable) and the Economy Act (31 U.S.C. §1535) when applicable.
- d) Non-Federal Entities. State/Local entities are not authorized ordering activities under this agency-specific IDIQ. The USFS may place orders itself in support of cooperative work, but states cannot order directly under this contract.
- e) File Documentation. Interagency orders will include the applicable interagency agreement in both agencies' files and sufficient documentation for audit under FAR 4.801(b).

H.1.5 Request/Description of Work

The Government will issue written requests for Task Orders. The request will include an outline of the scope of the project, the project location, the expected results of the completed project, and/or deliverable(s) required, and additional pertinent information (if possible), as Government-furnished property, maps, aerial photographs, and project files when available and applicable.

H.1.6 Selection Criteria for Awarding Task Orders

The Government will evaluate Task Order proposals based on the Best Value Continuum with consideration to the Contractors' ability to perform the work in the time required and price. At minimum, evaluation factors shall include (1) the Contractor's timeframe for starting the work, (2) past performance on completed and on-going orders and (3) price.

Additional information for technical approaches not previously submitted may be requested and evaluated prior to awarding Task Orders. The Task Order will be awarded to the Contractor whose technical and cost is most advantageous to the Government. project may involve a single task, part of a single task,

and/or multiple tasks. Therefore, single or multiple awards may be made for individual task orders, as specified in the Task Order requests.

H.1.7 Order Considerations

The Government may consider:

- Technical capability
- Prior performance under this IDIQ*
- Price
- Geographic coverage
- Responsiveness
- Availability/surge capacity

*Note: When IDIQ-specific order performance history is not yet available, the Government will assess relevant past performance and experience from other contracts consistent with the solicitation's evaluation factors.

H.1.8 Task Order Process

All Task Orders will be issued on a Firm-Fixed-Price (FFP) basis with a signed SF-1449 issued by the USFS.

H.1.9 Designation of Contracting Officer's Representative

The Task Order Contracting Officer will designate a Task Order Contracting Officer's Representative (COR) through a COR Designation Letter that will outline the COR's duties, responsibilities, and authorities. The COR is responsible for monitoring Contractor performance of services, schedules, and invoicing. The COR will never be designated the authority to make substantial changes to the contract nor Task Order; therefore, any changes to the Task Order whether verbal or in writing are not binding on the Government nor the Contractor until a written modification is signed and executed by the Task Order Contracting Officer.

The COR must be notified as soon as possible of any actions or inactions by either the Government or the Contractor that may change the required completion time stated in the Task Order, any change in field conditions or newly discovered information which would require additional work beyond the approved Task Order work plan(s), or of any other substantial change to the Task Order requirements. The COR will work with the Contracting Officer to modify the Task Order accordingly. No work beyond the approved Task Order work plan(s) may occur unless approval has been provided by the Contracting Officer. Any work completed outside of Task Order requirements may result in non-payment or cancellation of Task Order.

H.1.10 Approval of Subcontracting (Small and Large Businesses)

The Contractor shall notify the Task Order Contracting Officer of any subcontract arrangement that will be utilized in the performance of Task Order services prior to award of Task Order. The subcontractors that are intended for use on an individual Task Order should match those subcontractors who were listed at the time of the master IDIQ contract award. If the Contractor intends on using different subcontractors, the Contractor must provide notification to the Task Order Contracting Officer as part of the Task Order request response using Forest Service (FS) form 6300-11.

H.1.11 Fire Plans

As required, Forest Specific Fire Plans for Construction and Service Contracts will be provided to the Contractor as part of each Task Order request as necessary.

H.1.12 Service Contract Labor Standards Wage Determination:

Because the exact place(s) of performance cannot be determined at the time of award of this IDIQ, this contract does not include a Wage Determination (WD).

In accordance with FAR 22.1009-4 and FAR 22.1015, the Contracting Officer shall incorporate into each task order the appropriate U.S. Department of Labor Service Contract Labor Standards Wage Determination for the county and state where the work will be performed.

If a task order covers multiple counties or multiple states, the Contracting Officer will include all applicable WDs for each distinct place of performance.

H.1.13 Task Order Deliverables

Upon completion of a project Task Order under this contract, the Contractor shall prepare and submit to the USFS all deliverables as required by the Task Order Activities.

H.1.14 Ordering Ceiling

The cumulative value of all orders placed under all awarded contracts shall not exceed **\$9,000,000**.

H.1.15 Funding and Availability of Funds at the Task-Order Level

(a) Funding. All funding is applied at the task-order level. No work shall commence until the Contracting Officer issues a Notice to Proceed and confirms funds are available for the order.

(b) Use of FAR 52.232-18. When a task order will be charged to funds of a new fiscal year and must be awarded before those funds are available, the Government will include FAR 52.232-18, Availability of Funds, in the task-order solicitation/award.

(c) Use of FAR 52.232-19. When a one-year task order funded by annual appropriations must continue beyond a stated date (e.g., September 30) contingent on new-year funds, the Government will include FAR 52.232-19, Availability of Funds for the Next Fiscal Year, in the task-order award and will identify the date in the clause.

(d) Acceptance. In accordance with FAR 32.703-2(c), the Government shall not accept supplies or services under any task order conditioned on availability of funds until the Contracting Officer has provided written notice that funds are available.

H.2. Small-Business Subcontracting (Large Business Awards)

For any award to an "other-than-small" business in an amount that meets or exceeds the the FAR 19.702 threshold, and with subcontracting possibilities:

- 1) The Contractor shall submit an acceptable Small Business Subcontracting Plan compliant with FAR 19.704 and clause 52.219-9 prior to award.
- 2) The Contractor shall comply with 52.219-8 (Utilization of Small Business Concerns) and report ISR/SSR via the Government's designated system (currently SAM.gov Subcontracting Plan Reporting), per 52.219-9(l).

H.3. DEI Clause Compliance (USDA)

The Contractor shall comply with FAR 52.222-90 (APR 2026), Addressing DEI Discrimination by Federal Contractors, and any applicable USDA Agriculture Acquisition Regulation (AGAR) policy. The Government may request related records; the Contractor shall cooperate per clause terms.

H.4. Wage Determination

The applicable wage determination(s) will be incorporated in accordance with each Task Order as appropriate by the Activity the Task Order statement of work involves.

H.5. Contractor Key Personnel

Contractor shall be required to provide a roster of key contractor personnel. At minimum:

(a) The Contractor shall assign to this contract the following key personnel: Contractor Representative*; Project Foreman.

*For the IDIQ contract, only the Contractor Representative is required at the IDIQ level at the time of award; task-order POCs and foremen will be identified per order.

(b) During the first ninety (90) days of performance, the Contractor shall make no substitutions of key personnel unless the substitution is necessitated by illness, death, or termination of employment. The Contractor shall notify the Contracting Officer within 15 calendar days after the occurrence of any of these events and provide the information required by paragraph (c) below. After the initial 90-day period, the Contractor shall submit the information required by paragraph (c) to the Contracting Officer at least 15 days prior to making any permanent substitutions.

(c) The Contractor shall provide a detailed explanation of the circumstances necessitating the proposed substitution and any additional information requested by the Contracting Officer. Any approved substitute must possess the qualifications, skills, and capability necessary to perform the duties and responsibilities of the position. The Contracting Officer will notify the Contractor within 15 calendar days after receipt of all required information of the decision on substitutions. The contract will be modified to reflect any approved changes of key personnel.

H.6. Licensing and Permits

The Contractor shall possess and maintain all Federal, State, Tribal, county, and local permits, licenses, registrations, and authorizations required to perform wastewater pumping, hauling, transport, and disposal in each jurisdiction where work is performed under this IDIQ or any Task Order. This includes meeting all State-specific and locality-specific requirements for wastewater transporters, septage haulers, disposal facility use, and any other environmental or public-health permits applicable to the place of performance.

Contractors must ensure all required permits are valid prior to performing work in that State and must maintain compliance for the duration of the Task Order. Upon request, the Contractor shall furnish proof of such permits to the Contracting Officer or COR.

H.7. BioPreferred and Sustainability

H.7.1. This procurement requires the use of biobased products to the extent that such products are reasonably available, meet agency or relevant industry performance standards, and are reasonably priced. Where available, these products should first be acquired from among qualified products that fall under the umbrella of items designated through the Federal Biobased Products Preferred Procurement Program (FB4P).

The Contractor shall utilize products and material made from biobased materials (e.g. biobased greases, biobased hydraulic fluids, biobased absorbents) to the maximum extent possible without jeopardizing the intended end use or detracting from the overall quality delivered to the end user. All supplies and materials shall be of a type and quality that conform to applicable Federal specifications and standards. All supplies and materials to be used in the performance of work described herein are subject to the approval of the Contracting Officer.

In the performance of this contract, the Contractor shall make maximum use of biobased oils and lubricants that are designated by the United States Department of Agriculture unless the product cannot be acquired:

- Competitively within a time frame providing for compliance with the contract performance schedule;
- Meeting contract performance requirements; or
- At a reasonable price.

Information about this requirement and these products is available at <https://www.biopreferred.gov/BioPreferred/faces/catalog/Catalog.xhtml>

The Federal Acquisition Regulation (FAR) requires Contractors to report the purchase of biobased products under service and construction contracts during the previous Government fiscal year (October 1 thru September 30) and to submit this report no later than:

1. October 31 of each year during contract performance; and
2. At the end of contract performance.

Information about this requirement is available at <https://www.biopreferred.gov/BioPreferred/>

H.8. Safety Requirements

Compliance with all federal, state, local, and PWS safety rules is mandatory.

H.8.1. Contractor-Caused Spills and Releases

The Contractor is responsible for preventing and remediating all spills or releases caused by its operations. Any Contractor-caused spill or release shall be immediately contained, cleaned, and remediated in accordance with all applicable Federal, State, Tribal, and local laws and regulations.

The Contractor shall immediately notify the COR of any spill or release and shall submit a written report within 24 hours including: (a) material identity and quantity; (b) whether the spill meets reporting thresholds for the jurisdiction; (c) time and location; (d) containment actions; and (e) notifications made to regulatory authorities.

The Contractor shall not use Forest Service EPA or State identification numbers for contractor-caused spills.

H.8.2. Hazardous Waste Transporters

The Contractor shall comply with all Federal, State, Tribal, and local requirements governing the transportation of sewage, septage, and other non-hazardous waste removed under this contract, including applicable liquid waste hauler licensing in the State where the waste is transported.

If hazardous materials or hazardous waste are encountered, the Contractor shall stop work, secure the area, and notify the COR. The Contractor shall not remove hazardous waste unless authorized under a task order and properly licensed under all applicable State and Federal hazardous waste transporter regulations (e.g., 49 CFR Parts 100–199 and the corresponding State hazardous waste management program).

END OF SECTION H

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SECTION I – CONTRACT CLAUSES

The clauses and provisions contained herein are applicable to any contract or subsequent task order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions.

Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation.

Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

Clauses not including the full text herein are accessible on Acquisition.gov at <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>.

52.252-2 Clauses Incorporated by Reference (FEB 1998)

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Interested parties should access the full text of the clause electronically at Internet address <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

52.203-3 Gratuities (APR 1984)

52.203-16 Preventing Personal Conflicts of Interest (JUN 2020)

52.204-13 System for Award Management Maintenance (OCT 2018)

52.204-18 Commercial and Government Entity Code Maintenance (AUG 2020)

52.212-4 Contract Terms and Conditions—Commercial Products and Commercial Services (Nov 2023)

(a) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post-acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(b) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any

Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(d) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at Federal Acquisition Regulation (FAR) 52.233-1, Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) Definitions. The clause at FAR 52.202-1, Definitions, is incorporated herein by reference.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) Invoice. (1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized) to the address designated in the contract to receive invoices. An invoice must include-

(i) Name and address of the Contractor;

(ii) Invoice date and number;

(iii) Contract number, line item number and, if applicable, the order number;

(iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;

(v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;

(vi) Terms of any discount for prompt payment offered;

(vii) Name and address of official to whom payment is to be sent;

(viii) Name, title, and phone number of person to notify in event of defective invoice; and

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer-System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(2) Invoices will be handled in accordance with the Prompt Payment Act (31 U.S.C. 3903) and Office of Management and Budget (OMB) prompt payment regulations at 5 CFR Part 1315.

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment.- (1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR Part 1315.

(3) Electronic Funds Transfer (EFT). If the Government makes payment by EFT, see 52.212-5(b) for the appropriate EFT clause.

(4) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(5) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) Interest. (i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final decision as required by 33.211 if–

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on–

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR 32.608-2 in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

- (1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or
- (2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.
- (k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.
- (l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.
- (m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.
- (n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.
- (o) Warranty. The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.
- (p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.
- (q) Other compliances. The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.
- (r) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 18 U.S.C. 431 relating to officials not to benefit; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Fly American; and 41 U.S.C. chapter 21 relating to procurement integrity.
- (s) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:
- (1) The schedule of supplies/services.

(2) The Assignments, Disputes, Payments, Invoice, Other Compliances, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) The clause at 52.212-5.

(4) Addenda to this solicitation or contract, including any license agreements for computer software.

(5) Solicitation provisions if this is a solicitation.

(6) Other paragraphs of this clause.

(7) The Standard Form 1449.

(8) Other documents, exhibits, and attachments.

(9) The specification.

(t) [Reserved]

(u) Unauthorized Obligations. (1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (u)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(v) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders – Commercial Products and Commercial Services (Mar 2026)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

___ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

___ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

___ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

X (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

___ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

___ (6) [Reserved].

___ (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

___ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

__ (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

X (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115–390, title II).

X (11) (i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115–390, title II).

__ (ii) Alternate I (Dec 2023) of 52.204-30.

X (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).

X (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

__ (14) [Reserved].

__ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

__ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

__ (17) [Reserved]

__ (18) (i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

__ (ii) Alternate I (Mar 2020) of 52.219-6.

__ (19) (i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

__ (ii) Alternate I (Mar 2020) of 52.219-7.

X (20) 52.219-8, Utilization of Small Business Concerns (Jan 2025)(15 U.S.C. 637(d)(2) and (3)).

X (21) (i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).

__ (ii) Alternate I (Nov 2016) of 52.219-9.

__ (iii) Alternate II (Nov 2016) of 52.219-9.

__ (iv) Alternate III (Jun 2020) of 52.219-9.

X (v) Alternate IV (Jan 2025) of 52.219-9.

__ (22) (i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

__ (ii) Alternate I (Mar 2020) of 52.219-13.

__ (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).

X (24) 52.219-16, Liquidated Damages—Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

__ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

__ (26) (i) 52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).

__ (ii) Alternate I (Mar 2020) of 52.219-28.

__ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

__ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

X (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).

__ (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).

X (31) 52.222-3, Convict Labor (Jun 2003) (E.O. 11755).

X (32) 52.222-19, Child Labor—Cooperation with Authorities and Remedies (Mar 2026)(E.O. 13126).

__ (33) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

__ (34) (i) 52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).

__ (ii) Alternate I (Feb 1999) of 52.222-26.

X (35) (i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

X (ii) Alternate I (Jul 2014) of 52.222-35.

X (36) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

X (ii) Alternate I (Jul 2014) of 52.222-36.

X (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

X (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

X (39) (i) 52.222-50, Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

X (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

X (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

___ (41) (i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___ (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

X (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, et seq.).

X (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, et seq.).

___ (44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, et seq.).

___ (45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, et seq.).

X (46) 52.223-23, Sustainable Products and Services (May 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671).

X (47) (i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).

___ (ii) Alternate I (Jan 2017) of 52.224-3.

___ (48) (i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

___ (ii) Alternate I (Oct 2022) of 52.225-1.

___ (49) (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

___ (ii) Alternate I [Reserved].

___ (iii) Alternate II (Jan 2025) of 52.225-3.

___ (iv) Alternate III (Feb 2024) of 52.225-3.

___ (v) Alternate IV (Oct 2022) of 52.225-3.

___ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

X (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

___ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

___ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

___ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

X (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).

X (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).

__ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

__ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

X (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct2018) (31 U.S.C. 3332).

__ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

__ (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).

__ (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

X (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

__ (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

X (65) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

__ (ii) Alternate I (Apr 2003) of 52.247-64.

__ (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

X (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

X (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

X (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

__ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).

__ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

__ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

__ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

__ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

__ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

__ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118(g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii) (A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

- (ix) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).
- (x) 52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).
- (xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).
- (xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).
- (xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).
- (xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.
- (xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).
- (xvi) (A) 52.222-50, Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).
(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- (xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).
- (xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- (xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- (xxii) (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).
(B) Alternate I (Jan 2017) of 52.224-3.
- (xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.
- (xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.
- (xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

IDIQ Clauses

52.216-18 Ordering (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 22 May 2026 through 30 April 2031.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered “issued” when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

52.216-19 Order Limitations (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than **\$2,500.00**, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor—

(1) Any order for a single item in excess of **\$500,000.00**;

(2) Any order for a combination of items in excess of **\$1,000,000.00**; or

(3) A series of orders from the same ordering office within **30** days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection [52.216-21](#) of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within **three (3)** days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

52.216-22 Indefinite Quantity (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and **effective** for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the **Schedule**, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after **90** days past completion of the final Task Order.

52.216-32 Task-Order and Delivery-Order Ombudsman (Sep 2019)

(a) In accordance with 41 U.S.C. 4106(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract.

*Chief, Procurement and Policy Branch
Sherri Gerardi – sherri.gerardi@usda.gov*

(b) Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

(c) Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

52.217-8 Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor.

52.217-9 Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5) years, six (6) months.

52.222-41 Service Contract Labor Standards

52.222-43 Fair Labor Standards Act and SCLS—Price Adjustment

52.222-90 Addressing DEI Discrimination by Federal Contractors (Apr 2026) (Deviation Apr 2026)

52.223-2 Reporting of Biobased Products (May 2024)

52.223-23 Sustainable Products and Services (May 2024)

52.228-5 Insurance – Work on a Government Installation (JAN 1997)

52.232-39 Unenforceability of Unauthorized Obligations (Jun 2013)

52.237-2 Protection of Government Buildings, Equipment, and Vegetation (APR 1984)

52.242-15 Stop-Work Order (AUG 1989)

52.242-17 Government Delay of Work (APR 1984)

52.245-1 Government Property (SEP 2021) Alt 1 (APR 2012)

52.245-9 Use and Charges (APR 2012)

52.240-91 Security Prohibitions and Exclusions (Nov 2025) (Basic)

52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)

USDA AGAR Clauses

452.203-71 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Compliance (Dec 2025)

(a) By entering into this contract, the Contractor certifies that:

1. It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution, and it will remain compliant for the duration of the contract.

2. Neither it nor any subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution, and the Contractor and any subcontractor or teaming partner will not do so for the duration of the contract.

(b) If the Contractor participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, the Contractor certifies that it will remain compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The Contractor affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the Contractor is not eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to Contractor's compliance with the above requirements and/or eligibility for the contract may subject the Contractor to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) The Contractor must include the provisions of this clause in all subcontract solicitations.

(g) Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate this contract for default.

(End of Clause)

452.204-70 Modification for Contract Closeout (DEVIATION JUL 2022)

(a) If unliquidated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (Contracting Officer) may issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but is not required to provide a signature. The Contracting Officer will immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) For commercial contracts not exceeding the simplified acquisition procedure threshold under FAR 12.001(c), if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification. Only the modification requires the contractor's signature, though a Release of Claims may be requested. If the required documents are not returned within 60 days, the Contracting Officer will issue a unilateral modification and proceed with closeout once performance is complete, acceptance is confirmed, and final payment is made.

(c) For all other non-commercial or non-cost-reimbursement contracts, if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation

modification and a Release of Claims, both requiring contractor signature. If these documents are not returned within 120 days, the Contracting Officer will issue a unilateral modification u and proceed with closeout upon completion of performance, acceptance, and final payment.
(End of Clause)

452.228-71 Insurance Coverage (NOV 1996)

Pursuant to FAR clause 52.228-5, Insurance-Work on a Government Installation, the Contractor will be required to present evidence to show, as a minimum, the amounts of insurance coverage indicated below:

- (a) Workers Compensation and Employer's Liability. The Contractor is required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a Contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least \$100,000 shall be required, except in States with exclusive or monopolistic funds that do not permit worker's compensation to be written by private carriers.
- (b) General Liability. (1) The Contractor shall have bodily injury liability coverage written on a comprehensive form of policy of at least \$500,000 per occurrence. (2) The Contractor shall have property damage liability insurance shall be required in the amount of \$20,000 per occurrence.
- (c) Automobile Liability. The Contractor shall have automobile liability insurance written on a comprehensive form of policy. The policy shall provide for bodily injury and property damage liability covering the operation of all automobiles used in connection with performing the contract. Policies covering automobiles operated in the United States shall provide coverage of at least \$200,000 per person and 500,000 per occurrence for bodily injury and \$20,000 per occurrence for property damage or loss.
- (d) Aircraft Public and Passenger Liability. When aircraft are used in connection with performing the contract, the Contractor shall have aircraft public and passenger liability insurance. Coverage shall be at least \$200,000 per person and \$500,000 per occurrence for bodily injury, other than passenger injury. Coverage for passenger injury shall be at least \$200,000 multiplied by the number of seats or passengers, whichever is greater.

END OF SECTION I

SECTION J – ATTACHMENTS

Attachment Number	Description	Number of Pages
J1.	SF 1449 and Terms B-M 127EAS26R0003	
J2.	Performance Work Statement (PWS)	
J3.	IDIQ Schedule of Items (Fillable)	
J4.	Geographic Locations	
J5.	Maps	
J6.	Past Performance and Experience Questionnaire	
J7.	Representations and Certifications	
J8.	Contractor Responsibility Certification	
J9.	Biobased Statement	
J10.	Key Personnel	
J11.	FS 6300-11, Subcontractor Approval Form	
J12.	Seed TOPR STF-1149457 (Southern Sierra)	
J13.	Seed SOI STF-1149457	
J14.	Seed TOPR TMU-1165827 (Central Sierra)	
J15.	Seed SOI TMU-1165827	
J16.	Seed TOPR SRF-1167809 (Northern)	
J17.	Seed SOI SRF-1167809	
J18.	Seed TOPR BDF-1165566 (Southern)	
J19.	Seed SOI BDF-1165566	

END OF SECTION J

SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS OR RESPONDENTS

Offerors must complete, provided externally in Attachments, Section J.

K.1. Clauses

52.212-3 Offeror Representations & Certifications—Commercial Products and Commercial Services (Oct 2025)

52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)

52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements—Representation (Jan 2017)

52.204-7 SAM Registration (Nov 2025)

52.209-2 Inverted Domestic Corporations—Representation (Nov 2015)

52.209-11 Delinquent Tax Liability/Felony Conviction—Representation (Feb 2016)

52.229-11 Tax on Certain Foreign Procurements—Notice and Representation (Jun 2020)

52.216-27 Single or Multiple Awards (Oct 1995)

52.240-90 Security Prohibitions & Exclusions Reps & Certs (Nov 2025)

AGAR Clauses

452.204-72 Use of Electronic Data Interchange (EDI) or Other Automation Technologies (Apr 2026)

(a) In the event that Electronic Data Interchange (EDI) functionality or other automation technologies such as Robotics Process Automation is utilized to facilitate electronic transactions between USDA and its contractors, it is the sole responsibility of the Contractor to ensure accuracy of the electronically transferred data. The Government's electronic system shall serve as the system of record for all data exchanged or retrieved.

(b) The Government shall not be liable to the Contractor for any delay or failure associated with EDI or other automation technologies. The Contractor's use of this service is at the Contractor's sole risk. For electronic or automated services provided by USDA to the contractor, the services are provided on an "as is" and "as available" basis. For electronic or automated services provided by the contractor that interact with the USDA electronic systems, the USDA is not responsible for any costs incurred by the contractor related to the development, test, or support of the services. The Contractor shall be responsible for all fees associated with EDI. The Contractor is responsible for the confidentiality and security of its systems, interfaces, interconnections, and any documents that the customer receives from The Government pursuant to the contract.

(c) The Government reserves the right to restrict, refuse, or cancel any participation in EDI services.
(End of clause)

END OF SECTION K

SECTION L – INSTRUCTIONS TO OFFERORS (COMMERCIAL)**L.1 General**

L.1.1. It is anticipated that this solicitation will result in **multiple awards of Indefinite-Delivery, Indefinite-Quantity (IDIQ) contracts** in accordance with FAR 16.504(c). Awards will be issued using commercial procedures under FAR Part 12 and streamlined competitive procedures under FAR 13.5.

The Government reserves the right to make more than one award (multiple awards) for different line items, if, after considering the additional administrative cost to the Government of awarding and administering separate purchase orders, it is determined that the multiple awards will result in the best value to the Government.

L.1.2. The total shared ceiling across all awarded contracts is \$9,000,000.

L.1.3. Offerors shall submit all required information in accordance with this section. Offerors are cautioned that the Government may make award without discussions. Therefore, offerors should submit on their most favorable terms.

L.1.4. 52.212-1 Instructions to Offerors – Commercial Products and Commercial Services (NOV 2021) (Provision).

Interested offerors are required to include a copy of the Representations and Certifications in response to this solicitation. All offerors must have an ACTIVE registration in SAM.gov.

If the Offeror has completed the FAR representations and can be accessed, the Offeror must complete the provision at **Attachment J.8**, FAR 52.212-3 Offeror Representation and Certifications – Commercial Products and Commercial Services, with the submission.

L.2 Proposal Organization

Offerors shall submit three separate volumes as identified below.

L.2.1. Volume I – Technical.

Volume I shall include the following:

1. Technical Approach _ (< 3 pages) addressing:

Coverage/Capacity Matrix (zones, surge capability, remote access),
Surge/Emergency Response (48-hour), and
Equipment & Capability Overview.

2. Key Personnel (*Complete Forest Service Provided Form*) _ Offerors shall identify the Contractor Representative who will serve as the primary point of contact for the IDIQ contract. This individual must have authority to act on behalf of the company for matters relating to contract administration.

Task-order-specific personnel (such as Project Foremen or site leads) are not required at the IDIQ proposal stage. For each task order issued under the IDIQ, the Contractor will be required to identify the task order point of contact and any personnel responsible for performing the work, consistent with Section H. These personnel can may be listed on the seed projects in response to the key personnel requirement per task order.

3. Bio-Based Statement (*Complete Forest Service Provided Form*) _ Offerors shall complete the Bio-Based/Sustainable Products Statement of Intent form identifying whether biobased products are expected to be used during performance. If biobased products are proposed, list the products to be utilized. If biobased products are not proposed, provide the applicable justification. This information is required to demonstrate compliance with Federal biobased product procurement requirements.

4. Seed Projects (Use Forest Service Provided TOPR and Excel SOIs)

- *For Award*: full technical response to each “seed-for-award” project
- *For Evaluation Only*: full technical response to each “seed-eval-only” project

Offerors shall submit full technical responses for each “seed for award” project and each “seed evaluation only” project using the Government-provided task order packages. These responses will be evaluated as part of the Technical Volume.

L.2.2. Volume II – Past Performance, Experience

Volume II shall include the following:

1. Relevant Past Performance and Experience Offerors must Complete and submit the Past Performance Questionnaire provided in Section J Attachments. No alternatives will be accepted. The Past Performance Questionnaire (Attachment J.7) is used for both the Experience and Past Performance evaluations. Offerors shall complete one questionnaire for each of the projects submitted (up to five). The Government will use the information provided in the questionnaire to assess the offeror’s relevant experience as well as to contact references for past performance, as applicable.

2. Contractor Responsibility Certification (*Complete Forest Service Provided Form*) (J) must be completed in full. This form provides the Government with the information needed to assess the offeror’s responsibility under FAR 9.104, including financial resources, ability to meet schedule commitments, performance record, integrity, technical capability, equipment, eligibility, and SAM.gov status. If any “does not,” “cannot,” or similar response is selected, the offeror may provide an optional explanation. The Contracting Officer will use this form, along with any other available information, to make the responsibility determination.

L.2.3. Volume III – Price

Volume III shall include the following:

1. Completed Schedule of Items (SOI) _ Provide the cost estimate using the Government Provided Schedule of items for the IDIQ unit costs and the seed projects for each zone, to be returned in Excel. Complete only the fields highlighted in yellow, which includes contractor specific information.

2. Completed SF-1449 _ Submit the offer on the SF 1449 by completing the following blocks: 17(a) with offeror company name, address, phone number, ueiSAM number, POC Name, email and phone, 30(a-c) (Signature (30a) (must be by a person with authority to commit the contractor to this work for the Federal Government.)

3. Acknowledgement of any amendments _ Acknowledge amendments by completing blocks 8 with Company Name and Address and 15(a-c). Return as part of the package proposal. ALL applicable amendments must be included.

4. Representations and Certifications

- FAR 52.212-3 or **Attachment J.8** if applicable
- SAM.gov reps & certs acceptable if current

L.3 Communications

Questions must be submitted in writing. The Government held a **pre-proposal conference** (virtual) on 03/18/2026. Attendance was optional.

Questions may be submitted via email **by 1200 (Noon) PST no later than 05 May 2026** to sarah.belcher@usda.gov, victor.aguirreorozco@usda.gov, and klenise.wallace@usda.gov. Questions shall be submitted in the following format:

Document/Section	Page	Solicitation Language	Question
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L.4. Offers Due

Proposals are due no later than **2359 PST on 08 May 2026**. The remaining dates are tentative and subject to change.

Offerors shall submit proposals electronically via email to Klenise Wallace at klenise.wallace@usda.gov. No other methods of submission will be accepted. It is the responsibility of the offeror to confirm receipt. At minimum, solicitation number and Contractor name are required in the subject of all correspondence with the words “PROPOSAL SUBMISSION” for proposal acknowledgement.

L.5 Offer Acceptance Period

Offers must remain valid for **120 days**.

L.6. Provisions**52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)

52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)

52.204-7 System for Award Management—Registration (Nov 2025)

52.209-2 Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)

52.216-27 Single or Multiple Awards (Oct 1995)

52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

AGAR Provisions**452.203-70 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Certification
(Dec 2025)**

(a) By submission of its offer, the offeror certifies that:

1. It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution.
2. Neither it nor any proposed subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution.

(b) If the offeror participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, by submission of its offer, the offeror certifies that it is compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The offeror affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the offeror will not be eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to offeror's compliance with the above requirements and/or eligibility for the contract may subject the offeror to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) Failure on the part of the offeror or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate the contract for default.

(End of Provision)

NOTICE FOR FILING AGENCY PROTESTS**United States Department of Agriculture (USDA) Ombudsman Program**

The USDA is committed to issuing solicitations and awarding contracts in a fair and prompt manner. The Ombudsman Program for Agency Protests (OPAP) was established to address protest issues within the agency, providing an alternative to costly and time-consuming litigation. Operating independently, OPAP offers relief comparable to that granted by the Government Accountability Office (GAO). Interested parties are encouraged to resolve concerns through USDA's internal Alternative Dispute Resolution (ADR) process before pursuing external forums such as the GAO. Concerns may be addressed informally or through a formal agency protest filed with either the Contracting Officer or the Ombudsman.

Informal Forum with the Ombudsman

1. **Initial Point of Contact:** Interested parties who believe a specific USDA procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer.
2. **Escalation:** If the Contracting Officer is unable to address their concerns, interested parties are encouraged to contact the USDA Ombudsman for Agency Protests. Under this informal process, the agency is not required to suspend contract award performance. Utilization of the informal forum does not suspend any time requirement for filing a formal protest with the agency or other forums.
3. **Required Information:** To ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman

1. **Effort to Resolve:** Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions.
2. **Independent Review:** If the protester's concerns remain unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest with either the Contracting Officer or, alternatively, with the Ombudsman under the OPAP program. Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined in writing to be in the best interest of the Government.
3. **Resolution Timeline:** The agency's goal is to resolve protests within 35 calendar days from the date of filing.
4. **Required Information:** Protests shall include the information set forth in FAR 33.104(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.
5. **Timeliness:** Protests must be filed within the timeframes specified in FAR 33.104.
6. **Submission:** Formal protests under the OPAP program should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Election of Forum. By initiating a protest with the USDA, the protester agrees not to pursue the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If a protest is filed externally, the agency protest will be dismissed.

END OF SECTION L

SECTION M — EVALUATION (COMPARATIVE, COMMERCIAL, MULTI-AWARD)**M.1. General****M.2 FAR 52.212-2 Evaluation - Commercial Products and Commercial Services (Nov 2025)**

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Responsiveness (Pass/Fail)
Technical Approach (Confidence)
Relevant Past Performance and Experience (Confidence)
Price (Fair and Reasonableness)
Reps & Certs (Acceptable/Unacceptable)
Bio-Based Statement (Acceptable/Unacceptable)

Technical factors, when combined, are approximately equal to price.

(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

M.3 Evaluation Criteria

The Government will evaluate:

M.3.1. Responsiveness

Assessed for:

To be determined responsive, the offeror's proposal must include all documents identified under **L.2** herein.

M.3.2. Technical Capability

Assessed for:

Understanding of the PWS
Ability to service remote/hard-access zones
Surge capability (emergency response within 48 hours)
Equipment adequacy (pump trucks, transport ability, winter access)
Staffing plan

Trap-site setup and animal-welfare compliance
Communications plan
Risk mitigation

M.3.3. Experience and Past Performance

Assessed for:

Quality
Timeliness
Customer satisfaction
Business relations
Compliance with animal-welfare standards
Experience with similar gathers

Offerors with no past performance will receive a neutral rating.

M.3.4. Price Evaluation

Price will be evaluated for:

Reasonableness (FAR 13.106-3/15.404)
Completeness
Unbalanced pricing
Alignment with IGCE

The Government may make price/technical tradeoffs.

M.4 Evaluation Method

The Government intends to evaluate quotations using a comparative evaluation methodology. This means quotations will be compared against one another to determine which provides the best value to the Government, based on the evaluation factors outlined in this solicitation. The Government may consider quotations that exceed minimum requirements and offer additional value or benefits, even if they are not the lowest priced. However, formal trade-off procedures will not be conducted.

M.4.1. Rating Tables

Confidence Ratings (For Technical Evaluation)	
Rating	Description
High Confidence	Proposal demonstrates a clear, comprehensive, and feasible approach; strong capability to meet all PWS requirements including remote/winter access and surge; minimal risk.
Moderate Confidence	Proposal adequately addresses requirements; minor gaps or risks that are manageable; likely to meet performance with normal Government oversight.
Low Confidence	Proposal presents material gaps, unclear methods, or significant risks; limited confidence in successful performance without substantial Government intervention.

Confidence Ratings (For Past Performance and Experience)	
Rating	Description
Substantial Confidence	Recent/relevant performance shows consistently high quality, timeliness, and compliance; strong customer satisfaction.
Satisfactory Confidence	Recent/relevant performance generally meets requirements with minor issues resolved; overall positive.
Neutral Confidence	No recent/relevant past performance available; treated neither favorably nor unfavorably.
Limited Confidence	Performance record shows notable issues in quality/timeliness/compliance; risk exists.
No Confidence	Significant performance problems; high risk of unsuccessful performance.

Price Evaluation Notation	
Rating	Description
Reasonable (Acceptable)	Prices evaluated per **FAR 13.106-3** are fair and reasonable for SOI CLINs and seed projects; no material unbalancing observed.
Unbalanced/Unreasonable (Unacceptable)	Prices are materially unbalanced or not reasonable versus market/IGCE; not eligible for award.

M.5 Award Type

M.5.1. The Government intends to make multiple awards (2 or more), consistent with FAR 16.504(c), to the offerors whose proposals represent the best overall value to the Government. Evaluation will use comparative analysis procedures under FAR 12.602.

M.5.2. The Government intends a **multiple awards** mix of small and large businesses to achieve full coverage and robust competition.

M.5.3. Awards will be made to all offerors whose overall **comparative standing** is **Acceptable** or better and whose pricing is **reasonable**, until geographic coverage and surge needs are met.

M.3.4. The award may be made without discussion. Therefore, offers should be submitted initially on the most favorable terms that an offeror can submit to the Government. The Government may, after evaluation of proposal, conduct further oral or written discussion as appropriate with the Offeror.

M.3.5. The Government reserves the right to not award the contract if discussions or negotiations with the Offeror do not result in a price considered reasonable and in the best interest of the Government. The Government also reserves the right to solicit offers from other Contractors if negotiations are not effective.

M.3.6. The Government may:

- Award to all offerors whose technical proposal is at least “Acceptable” and offers reasonable pricing
- Limit awards to ensure adequate geographic coverage
- Consider diversity of contractor capability to mitigate performance risk across eight dispersed zones

END OF SECTION M – END OF SOLICITATION 127EAS26R0003 TERMS